

Go Digit General Insurance Limited vs Smti Mithu Jamatia on 19 June, 2026

STATE CONSUMER DISPUTES REDRESSAL COMMISSION
TRIPURA

FIRST APPEAL NO. SC/16/FA/13/2025

(Against the Order dated 1st July 2025 in Complaint No. DC/272/CC/47/2024 of the Dis
Consumer Disputes Redressal Commission West tripura)

GO DIGIT GENERAL INSURANCE LIMITED
PRESENT ADDRESS - ADDRESS ATLANTIS, 95, 4TH B CROSS ROAD, KORAMANGALA
INDUSTRIAL LAYOUT, 5TH BLOCK, BENGALURU, KARNATAKA, 560095.BENGALURU
URBAN,KARNATAKA.

.....Appellant(s)

Versus

SMTI MITHU JAMATIA
PRESENT ADDRESS - PRESENTLY RESIDING AT CO BIBEK TRIPURA,
KRISHNANAGAWEST TRIPURA,TRIPURA.

.....Resp

BEFORE:

HON'BLE MR. JUSTICE BISWAJIT PALIT , PRESIDENT
MRS. DALIA SAHA , MEMBER
MR. JHANTU DEBNATH , MEMBER

FOR THE APPELLANT:

SHUBHAJIT CHAKRABORTY (Advocate)

FOR THE RESPONDENT:

SAMPAD CHOUDHURY (Advocate)

DATED: 19/06/2026

ORDER

CAV reserved on : 05.05.2026.

Judgment & Order

delivered on : 19.06.2026

Whether fit for reporting : YES/NO

JUDGMENT & ORDER

Heard Learned Counsel, Mr. S. Chakraborty appearing on behalf of the appellant-Insurance Company and also heard Learned Counsel, Mr. S. Choudhury appearing on behalf of the respondent- claimant.

02. The appellant by this appeal has challenged the judgment dated 01.07.2025 passed by the West Tripura District Consumer Disputes Redressal Commission on 01.07.2025 in connection with case No.CC 47 of 2024. By the said judgment and order the District Consumer Disputes Redressal Commission has awarded a sum of Rs.15,00,000/- with 7.5% interest from the date of filing the complaint-petition before the Commission i.e. w.e.f. 06.05.2024 and also to pay of sum of Rs.3,000,000/- as compensation to her mental agony and harassment with further sum of Rs.50,000/- towards cost of litigation with an additional interest at the rate of 9% per annum.

03. At the time of hearing, Learned Counsel, Mr. S. Chakraborty appearing on behalf of the appellant-Insurance Company drawn the attention of the Commission that the judgment of the District Consumer Disputes Redressal Commission suffers from various infirmities and the respondent- claimant is not entitled to get any compensation but the District Consumer Disputes Redressal Commission ignoring the guidelines of IRDA awarded the compensation in favour of the respondent for which the interference of this Commission is required. Learned Counsel for the appellant further submitted that the policy was outside the purview of covering the personal accident coverage as there was no coverage on the date of occurrence of the accident i.e. on 07.02.2024 and as such no claim is payable for non-coverage of the personal accident risk of owner driver and as such the claim was not maintainable but the Learned District Consumer Disputes Redressal Commission ignoring the coverage allowed the claim of the respondent-claimant for which the interference of this Commission is required.

04. On the other hand, on behalf of the respondent-complainant a written note was submitted. It was submitted by the respondent-claimant that the deceased husband of the complainant, Upabashi Jamatia was the registered owner-cum-driver of scooty bearing registration No.TR 03 L 4669 (Honda Dio) which was duly insured with the appellant-Insurance Company under policy No.Do24771785/28102020 valid from 28.10.2020 to 27.10.2025 and he had a valid driving license vide DL No.TR03 20180054185. As such he is squarely false within the definition of owner-driver under GR-36 of the India Motor Tariff and he is entitled to Compulsory Personal Accident (CPA) cover, which is mandatory under GR.3 of the said Tariff.

05. According to the Learned Counsel for the respondent on 07.02.2024 at about 08:20 hours, while the deceased was riding his scooty towards his residence that time another motorcycle came from the opposite direction in rash and negligent manner dashed against the vehicle near Bagma Chowmuhani, as a result of which deceased sustained grievous injuries on his head, chest and multiple parts of the body and ultimately he succumbed to his injury. Accordingly, a written ejahar was lodged at Bagma Police Out Post, Udaipur and a case was registered at R.K. Pur P.S. which established the death of the deceased. The complainant sought to avail CPA benefits but the appellant has no branch office in Tripura and finally the complaint was made.

It was further submitted that as per GR.2 of the Indian Motor Tariff a Proposal Form be submitted by the insured before commencement of the cover and at renewal in case of material alternation, except in case of mere change of IDV, the insurer is duty bound to maintain the signed Proposal Form as proof of options exercised by the insured. But in the given case, the Insurance Company has failed to produce any signed Proposal Form of the deceased insured. Thus, suppressed the material evidence. It was also submitted that for change of IDV at each renewal, fresh proposal is not necessary and such changes may be advised by the insured to the insurer by a letter signed by the insured/insured's authorized signatory (for companies/body corporate) and sent to the insurer by recorded delivery. In case of change of insurer, a fresh proposal is required to be submitted to the new insurer. As per GR.3 of the Indian Motor Tariff, Personal Accident Cover for Owner-Driver is mandatory in all motor insurance policies, whether issued as Liability Only or Package Policy.

Further he referred GR.3 as follows:

"GR.3 Policy Forms: Policies insuring Motor Vehicles are to be issued only as per the Standard Form(s) given in Section 6 of the Indian Motor Tariff. A. Types of Policies:

(i) Liability Only Policy: This covers Third Party Liability for bodily injury and/or death and Property Damage. Personal Accident Cover for Owner-Driver is also included.

(ii) Package Policy: This covers loss or damage to the vehicle insured in addition to (i) above."

Learned Counsel further submitted that in the present case admittedly the deceased insured was covered under a Liability Only Policy and hence, the Compulsory Personal Accident Cover stood statutorily embedded in the contract of insurance and as such according Learned Counsel, the rejection of the claim is contrary to GR.3 of the Indian Motor Tariff and as such repudiation amounts to deficiency in service and unfair trade practice within the meaning of Section 2(11) and 2(47) of the Consumer Protection Act, 2019.

Further, Learned Counsel also referred GR.36 of the Indian Motor Tariff and supported that Compulsory Personal Accident Cover Coverage embedded in all motor insurance policies whether Liability Only or Package Policies, and is applicable to the registered owner-driver holding a valid driving license. But the only exception permitted under GR.36 is where the insured has already taken a separate PA Policy for the same owner-driver, and has expressly requested deletion of CPA cover through a signed proposal form or endorsement. So, respondent-complainant is entitled to the CPA benefit as a matter of statutory right, and adverse inference under Section 114(g) of the Evidence Act, 1872 must be drawn against the appellant-Insurance Company. It was further submitted that IRDA vide notification No.IRDAI/NL/CIR/MOTP/158/09/2018 dated 20.09.2018 submitted that the coverage under the Compulsory Personal Accident (CPA) Cover to Rs.15,00,000/-. He also relied upon one judgment of the Karnataka State Consumer Disputes Redressal Commission in connection with case No.Appeal/2361/2023 dated 18.12.2023 wherein Hon'ble State Commission observed as under:

"It is the duty of the agent or insurer to inform the insured about the necessity of availing personal accident coverage as the IRDA mandates under GR.36A.... Cover is provided to the owner-driver whilst driving the vehicle including mounting into/dismounting from or travelling in the insured vehicle as a co- driver. In such being the case, as the agent or insurer was very much aware that the insured has valid DL, as to how, issued only Two-Wheeler package Policy precluding Personal Accident Cover. If the insured has not opted for Compulsory PA cover, the agent or insurer could have precluded from issuing Two-Wheeler Package Policy in view of GR.36A. Such incomplete proposal form, not offering compulsory PA cover, not collecting premium to that effect and thereafter justifying repudiation of the Personal Accident claim... amounts to deficiency in service and unfair trade practice."

Referring the same, he submitted that this case is squarely covered by the said aforesaid judgment and urged for dismissal of the appeal.

o6. We have heard Learned Counsel of both the parties at length and perused the judgment delivered by the Learned District Consumer Disputes Redressal Commission. The subject matter of the dispute has already been discussed above. The District Consumer Disputes Redressal Commission relied upon the Indian Motor Tariff Act 2002 and awarded compensation in favor of the respondent-claimant and came to the observation that there was deficiency of service on the part of the appellant. We have also perused GR.2 of Indian Motor Tariff, GR.3 which discusses about types of policies and category liability of the policies also covered for owner and driver and since the deceased-insured was cover by Liability Only Policy as such the CPA cover stood and statutorily embedded in the contract of insurance and GR.36 of the Indian Motor Tariff also supports the matter. Learned Counsel for the appellant-Insurance Company also relied upon the notification dated 20.09.2018 issued by the IRDA wherein in Clause-4(i) (ii) it has been provided as under:

4. In accordance with the above directions of the Hon'ble High Court of Judicature at Madras, the Authority, in exercise of the powers conferred by Section 14(2) (i) of the IRDA Act 1999 and in consultation with the stakeholders, hereby issues the following modifications to General Regulation (GR)-36 of India Motor Tariff, 2002 on Compulsory Personal Accident Cover for Owner-Driver.

(i) All General Insurers carrying on motor insurance business shall provide CPA Cover for Owner-Driver under Liability Only, under Section III of Package Policies to all classes of vehicles and Bundled Covers wherever applicable.

(ii) A minimum Capital Sum Insured (CSI) of Rs.15,00,000/- shall be provided under CPA Cover for Owner-Driver under Liability Only, under Section III of Package Policies to all classes of vehicles and Bundled Covers wherever applicable at the premium rate of Rs.750/- per annum for annual policy. This rate will be valid until further notice.

Referring the aforesaid Clause-2(ii) Learned Counsel submitted that the insured in the policy did not apply for PA cover and as such the claimant is not entitled to get the benefit and the judgment of the Learned District Consumer Disputes Redressal Commission suffers from infirmities .

o7. To counter his submission, Learned Counsel for the respondent-claimant further submitted that Clause-(ii) of the aforesaid regulation would be followed by Clause-(i) which ensures that these are the mandatory guidelines/regulations which shows that all the insurance companies carrying on business shall provide CPA cover for owner-driver under Liability Only under Section 3 of the Package Policies to all classes of vehicles and bundled covers wherever applicable. So, the contention of the Learned Counsel for the appellant-Insurance Company that no separate premium was paid for PA coverage cannot be accepted and furthermore, by the aforesaid notification dated 20.09.2018 the guideline of the Indian Motor Tariff cannot be overridden and as such in the considered of this Commission the case of the claimant covers under Liability Only Policy.

The citation as referred by Learned Counsel for the respondent-claimant also supports her case and as such we do not find any error in the judgment delivered by the Learned District Consumer Disputes Redressal Commission for interference.

o8. In the result, the appeal filed by the appellant-Insurance Company stands dismissed being devoid of merit. The appellant-Insurance Company is to ensure compliance of this judgment at an earliest.

Send down the record to the Learned District Consumer Disputes Redressal Commission along with a copy of this judgment/order.

With these observations, this present appeal stands disposed of.

Pending application(s), if any, also stands disposed of.

.....J BISWAJIT PALIT PRESIDENT

DALIA SAHA MEMBER

JHANTU DEBNATH MEMBER